

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ANTHONY CASIANO,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, SGT. FREDY CRUZ Shield #12755,
POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER
EMMANUEL VALERIO Shield #20335, and
JOHN DOES-Police Officers as yet unidentified

Defendants.

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Index No.: 154516/2019

Date Purchased: 5/1/19

Plaintiff designates
New York County as the
place of trial

Basis of the venue is
Locus of Occurrence

COMPLAINT

Plaintiff resides at
1851 Loring Place
South, 2nd Floor
Bronx, NY 10453

Plaintiff, ANTHONY CASIANO, by his attorneys, LAW OFFICES OF PAMELA S.
ROTH, ESQ. P.C., complaining of the defendants herein, upon information and belief,
respectfully shows to this Court, and alleges as follows:

INTRODUCTORY STATEMENT

1. The plaintiff, ANTHONY CASIANO, brings this action under 42 U.S.C. Sec. 1983 and related state laws seeking compensatory and punitive damages and attorney's fees under 42 U.S.C. Sec. 1988 for the defendants' violation of his rights afforded by the United States and New York Constitutions and under the laws of the State of New York.

JURISDICTION

2. The Court has jurisdiction over plaintiff's claims under 42 U.S.C. Sec. 1983 pursuant to 28 U.S.C. Sec. 1331 and Sec. 1342(3).

3. The Court has supplemental jurisdiction over plaintiff's state law claims pursuant to 28 U.S.C. Sec. 1367.

4. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO, and JOHN DOES JOHN DOES-Police Officers as yet unidentified and Shield No. unknown at this time, being employees of the New York City Police Department, respectively, violated plaintiff's civil rights without just and probable cause, causing him emotional and economic loss.

**AS AND FOR A FIRST CAUSE OF ACTION
FOR A BATTERY ON BEHALF OF ANTHONY CASIANO**

5. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Bronx, City and State of New York.

6. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

7. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT, and as such is responsible for the practices, policies and customs of the New York City Police Department, as well as the hiring, screening, training, supervising, controlling and disciplining of those persons employed by the New York City Police Department.

8. That on May 1, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY

GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO, and JOHN DOES JOHN DOES-Police Officers as yet unidentified and Shield No. unknown, as agents, servants and/or employees.

9. That on May 1, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

10. That on May 1, 2016, at approximately 1:55AM and at all times hereinafter mentioned and upon information and belief, the plaintiff, ANTHONY CASIANO, was lawfully present at or near the north east corner of West 175th Street and Audubon Avenue, in the County of New York, City and State of New York, when Plaintiff was attacked, assaulted, beaten, battered, chased into the East River where he was almost drowned by defendants herein, unlawfully arrested, and maliciously prosecuted all without probable cause and was not the result of an appropriate arrest.

11. That on May 1, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned arrest, battery was performed knowingly, intentionally and willfully, and exacerbated his prior back, neck and leg injuries.

12. That on May 1, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO, and JOHN DOES JOHN DOES-Police Officers as yet unidentified JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, ANTHONY CASIANO, by forcibly placing the handcuffs on Plaintiff very tightly

around both of his wrists, beating and assaulting him, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

13. That on May 1, 2016, and at all times hereinafter mentioned and upon information and belief, the battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

14. Plaintiff ANTHONY CASIANO was not guilty of any criminal acts.

15. The Plaintiff had an assault and battery committed upon him by defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO, and was caused to sustain severe personal injuries.

16. Plaintiff ANTHONY CASINO claims he was verbally abused and beaten while he was lawfully present at or near the at, near and on the north east corner of West 175th Street and Audubon Avenue, visually observing and videotaping an arrest being made by the defendants herein of Arhenis Batista.

17. Defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO, immediately chased Plaintiff for three blocks and chased him to the East River and repeatedly smashed his face and head onto the pavement.

18. Plaintiff was removed from the East River as he was in fear of drowning by the defendants herein.

19. Plaintiff was brutally handled, punched, kicked, abusively treated, placed in a chokehold, handcuffed and choked, then he was dragged to the back of the patrol car while handcuffed, thrown to the ground, repeatedly punched on his body, had an assault

and battery committed upon him, and put in imminent fear of life and limb.

20. Plaintiff was never told why he was arrested. He was never read his Miranda warnings.

21. Plaintiff sustained public embarrassment, indignity, shame, damage to reputation, emotional and physical abuse, emotional and physical distress, injuries, harassment and illegal confinement.

22. By reason of said battery the plaintiff was caused to suffer severe and serious injuries in and about his arms and both wrists, and exacerbated prior neck and back injuries on his person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured, and said injuries necessitated medical intervention and treatment.

23. By reason of the foregoing, the plaintiff, ANTHONY CASIANO, sustained damages in an amount exceeding jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF ANTHONY CASIANO**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. The defendants herein, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to Defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, were negligent, reckless and careless in battering and in violating the civil rights of the plaintiff, ANTHONY CASIANO.

26. As a result of said negligence, the plaintiff, ANTHONY CASIANO, became sick,

sore, lame and disable, received severe and serious injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

27. By reason of the foregoing, the plaintiff, ANTHONY CASIANO, sustained damages in an amount exceeding jurisdictional limits of all the lower Courts.

28. That by reason of the foregoing, the plaintiff was caused to be falsely arrested and illegally deprived of his liberty and civil rights; was caused to suffer imprisonment and confinement; was caused to be assaulted and battered by the defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, thereby sustaining conscious pain and suffering, severe, serious and permanent personal injuries; was obliged to undergo medical care and treatment; was incapacitated from his usual vocation; suffered great shock to his nervous system; incurred medical expenses; incurred legal expenses; and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING
AND NEGLIGENT RETENTION ON BEHALF OF ANTHONY CASIANO**

29. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "28" inclusive with the same force and effect as if more fully set forth at length herein.

30. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants or employees acted negligently, carelessly and recklessly in hiring and/or retaining the individually named defendants in that said individual defendants were or should have been known to be employees who abused and misused their position, who gave false information, or who acted intentionally and/or recklessly toward the public.

31. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants or employees and were negligent in the hiring, training and retention of the defendants, SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, who beat, battered and assaulted and violated the civil rights of the plaintiff, ANTHONY CASIANO.

32. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

33. By reason of the foregoing, the plaintiff, ANTHONY CASIANO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF ANTHONY CASIANO**

34. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.

35. That on May 1, 2016, and at all time hereinafter mentioned and upon information and belief the defendants, SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police

Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, ANTHONY CASIANO, inside his place of residence.

36. That on May 1, 2016, and at all time hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

37. At no time did plaintiff commit any act or offense for which an arrest may be lawfully made, nor was plaintiff apprised of the criminal charges for which he was handcuffed, arrested and detained for more than 72 hours.

38. The false criminal charges, false arrest and wrongful imprisonment were without any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

39. That as a result of the aforesaid false arrest and confinement, plaintiff, ANTHONY CASIANO, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

40. By reason of the foregoing, the plaintiff, ANTHONY CASIANO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF ANTHONY CASIANO**

41. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “40” inclusive with the same force and effect as if more fully set forth at length herein.

42. That on May 1, 2016, and at all time hereinafter mentioned and upon information and belief, the defendants, SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, ANTHONY CASIANO.

43. That defendants, SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

44. By reason of the foregoing, the plaintiff, ANTHONY CASIANO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL AND
NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS
ON BEHALF OF ANTHONY CASIANO**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “44” inclusive with the same force and effect as if more fully set forth at length herein.

46. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

47. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ANTHONY CASIANO.

48. That as a result of said intentional and negligent acts, the plaintiff, ANTHONY CASIANO, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

49. By reason of the foregoing, the plaintiff, ANTHONY CASIANO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF ANTHONY CASINO**

50. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "49" inclusive with the same force and effect as if more fully set forth at length herein.

51. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT including but not limited to defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO

and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

52. Said actions exceeded all reasonable bound of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ANTHONY CASIANO.

53. That as a result of said intentional and negligent acts, the plaintiff, ANTHONY CASIANO, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

54. By reason of the foregoing, the plaintiff, ANTHONY CASIANO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
CIVIL RIGHTS VIOLATION ON BEHALF OF ANTHONY CASIANO**

55. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "54" inclusive with the same force and effect as if more fully set forth at length herein.

56. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT including but not limited to defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, battered, falsely arrested and falsely imprisoned

the plaintiff, ANTHONY CASIANO, for more than 72 hours, in violation of 42 U.S.C.A.

Section 1983 as well as other applicable and federal laws.

57. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

58. That the battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable and federal laws.

59. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.

60. That the defendants had deprived the plaintiff by their actions of his civil rights a guaranteed by statute.

61. That the battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable and federal laws.

62. That the deprivation by the defendants of the plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and

JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.

63. That the defendants' actions were not privileged or immune.

64. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

65. By reason of the foregoing, the plaintiff, ANTHONY CASIANO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ANTHONY CASIANO**

66. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "65" inclusive with the same force and effect as if more fully set forth at length herein.

67. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

68. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants SGT. FREDY CRUZ, POLICE OFFICER EDDY GUTIERREZ, POLICE OFFICER

EMMANUEL VALERIO and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

69. By reason of the foregoing, the plaintiff, ANTHONY CASIANO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, ANTHONY CASIANO, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of action; plaintiff, ANTHONY CASIANO, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of action; plaintiff, ANTHONY CASIANO, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of action; plaintiff, ANTHONY CASIANO, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of action; plaintiff, ANTHONY CASIANO, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of action; plaintiff, ANTHONY CASIANO, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of action; plaintiff, ANTHONY CASIANO, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh Cause of action; plaintiff, ANTHONY CASIANO, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Eighth Cause of action; together with attorneys' fees, and the costs and disbursements of this action.

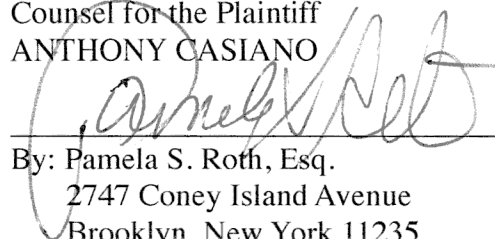
DATED: Brooklyn, New York
May 1, 2019

Respectfully submitted,

LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.

Counsel for the Plaintiff

ANTHONY CASIANO

A handwritten signature in dark ink, appearing to read 'Pamela S. Roth', is written over a horizontal line.

By: Pamela S. Roth, Esq.

2747 Coney Island Avenue

Brooklyn, New York 11235

(888) 466-4884

VERIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF KINGS)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

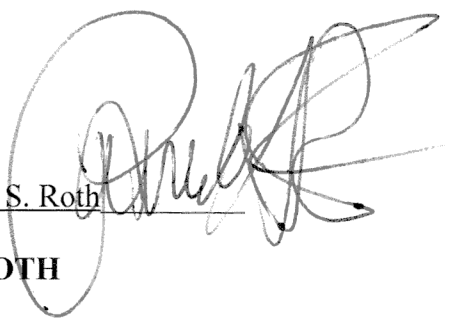
That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I have read the foregoing *Complaint* and know the contents thereof; the same is true to my own knowledge except as to those matters therein alleged to be on information and belief and as to those matters, I believe them to be true.

The reason this Verification is made by me and not by Plaintiff is that the residence of Plaintiff is outside the County wherein your deponent maintains her office.

The grounds of my belief as to all matters not stated upon my own knowledge are information, books, records, data and correspondence contained in deponent's file and conversation had with the plaintiff herein.

I affirm that the foregoing statements are true under the penalty of perjury.

Dated: May 1, 2019



Pamela S. Roth

PAMELA S. ROTH

CERTIFICATION

STATE OF NEW YORK)

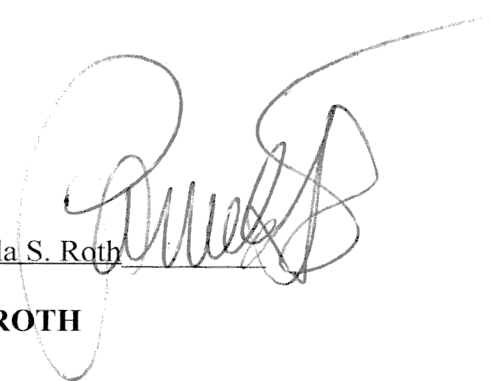
) ss.:

COUNTY OF NEW YORK)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I hereby certify, pursuant to 22 NYCRR 130-1.1(a) and after performing an inquiry reasonable under the circumstances, that the within ***Complaint*** and its respective contentions, are not frivolous as set forth in and defined by 22 NYCRR 130-1.1(c).

Dated: Brooklyn, New York
May 1, 2019



Pamela S. Roth**PAMELA S. ROTH**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.

ANTHONY CASIANO,

Plaintiff,

- against -

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JOHN DOES-Police Officers as yet unidentified,**

Defendants,

SUMMONS

Attorney for Plaintiff
LAW OFFICE OF PAMELA S. ROTH, ESQ. P.C.
2747 Coney Island Avenue
Brooklyn, New York 11235
Telephone: 888-466-4884
Facsimile: 212-253-4220

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous

Dated: Brooklyn, New York
May 1, 2019

Signature.....
Print Signer's Name: **Pamela S. Roth**

Service of a copy of the within
Dated:

is hereby admitted.

.....
Attorney(s) for
